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CASE #	CASE NAME	HEARING NAME
CVRI2507091	ROMERO vs MARCELO	MOTION FOR ENTRY OF INTERLOCUTORY JUDGMENT FOR PARTITION BY SALE, APPOINTMENT OF PARTITION REFEREE, AND RELATED ORDERS

Tentative Ruling:

Motion granted. No opposition filed.

5.

CASE #	CASE NAME	HEARING NAME
RIC1702811	SAN JACINTO COLINAS 337 LLC vs INVESTUSA HOLDING ENTERPRISES LLC	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling:

Summary of Ruling:

Summary Judgment/Adjudication: The Court denies the motion for summary judgment. San Jacinto has failed to meet its initial burden. The Court treats the motion as a motion for summary adjudication as to the first cause of action in the complaint and the third cause of action in the first amended-cross complaint only, due to San Jacinto's failure to comply with California Rules of Court, rule 3.1350(b), (d), and (f) and CCP § 437c(f)(1). The Court denies the motion for summary adjudication as to these causes of action because San Jacinto has failed to meet its initial burden.

PMK Deposition: The Court grants San Jacinto's request to reopen discovery. The Court reopens discovery only for the taking of InvestUSA's PMK and orders that the deposition shall be completed in one calendar day. The deposition shall not exceed 7 hours. The Court will discuss with the parties regarding a convenient date for all parties for the PMK deposition to occur; the Court will order that the deposition go forward on that day.

Factual / Procedural Context:

San Jacinto Colinas 337, LLC ("San Jacinto") owns 96.8 acres of vacant land. It entered into an agreement with InvestUSA Holding Enterprises, LLC ("InvestUSA") for the purchase of said property. San Jacinto contends that InvestUSA breached this agreement by failing to deliver the closing cash balance to escrow, failing to execute and deliver documents to the escrow holder, and failing to provide evidence of sufficient